



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 20 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12028

EXPIRATION DATE: March 31, 1998, or
upon completion of one shipment, which
ever occurs earlier.

1. GRANTEE: Van Waters & Rogers, Inc.
Carencro, LA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of chlorine in a DOT Specification 106A500X tank car tank which developed a leak in the valve area of the tank. The container is equipped with an emergency "B-Kit" to prevent leakage during transportation. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.24(b), 179.300-12(b), 179.300-13(a) and 179.300-14.
5. BASIS: This emergency exemption is based on the application of Van Waters & Rogers, Inc., dated January 15, 1998, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 106A500X tank car tank which developed leakage in the valve area of the tank. The tank car is equipped with an emergency "B-Kit" to prevent leakage during transportation.

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- b. The tank must be braced and blocked to prevent movement during transportation.
8. SPECIAL PROVISIONS: The tank will be transported by a company-owned vehicle from Westlake, LA to Geismar, LA. Personnel trained in emergency response procedures will accompany the shipment.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport the tank covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 20 1998

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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